



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 2435: internationally trained physicians; licensure

KUPPER FLOOR AMENDMENT

1. Incorporates the HHS Committee amendment.
2. Defines the phrase *indirect supervision with direct supervision immediately available* to mean the supervising physician is physically present within the hospital or other eligible entity site of patient care and is immediately available to provide direct supervision of the provisional licensee.

KUPPER SUBSTITUTE FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2435

I move the following SUBSTITUTE amendment to the HEALTH & HUMAN SERVICES Committee Amendment to
HOUSE BILL 2435 (Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.
[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 32-1424, Arizona Revised Statutes, is amended to
3 read:

4 32-1424. Fifth pathway program; pathway one; licensure;
5 provisional licensure

6 A. In addition to the requirements for licensure prescribed in
7 sections 32-1422 and 32-1423, an applicant for licensure under this
8 article who attended a foreign school of medicine and successfully
9 completed all ~~the~~ formal requirements to receive the degree of doctor of
10 medicine except internship or social service, and WHO is accordingly not
11 eligible for certification by the educational [council] [COMMISSION] for
12 foreign medical graduates, may be considered for licensure under this
13 chapter if the applicant meets the following conditions:

14 1. Satisfactorily completes an approved fifth pathway program of
15 one academic year of supervised clinical training under the direction of
16 an approved school of medicine in the United States.

17 2. Successfully completes an approved ~~twenty-four month~~
18 TWENTY-FOUR-MONTH internship, residency or clinical fellowship program
19 ~~upon~~ ON completion of the fifth pathway program.

20 B. A document granted by a foreign school of medicine signifying
21 completion of all [the] formal requirements for graduation from ~~such~~ THE
22 foreign medical school except internship or social service training, or
23 both, along with certification by the approved school of medicine in the
24 United States of successful completion of the fifth pathway program is
25 deemed the equivalent of a degree of doctor of medicine for purposes of
26 licensure and practice as a physician in this state.

1 C. NOTWITHSTANDING SUBSECTIONS A AND B OF THIS SECTION, AN
2 APPLICANT FOR LICENSURE WHO ATTENDED A ~~[FOREIGN]~~ SCHOOL OF MEDICINE, WHO
3 SUCCESSFULLY COMPLETED ALL FORMAL REQUIREMENTS FOR GRADUATION FROM THE
4 ~~[FOREIGN]~~ SCHOOL OF MEDICINE AND WHO SATISFIES THE REQUIREMENTS PRESCRIBED
5 IN PATHWAY ONE OF THE EDUCATIONAL ~~[COUNCIL]~~ [COMMISSION] FOR FOREIGN
6 MEDICAL GRADUATES SHALL BE GRANTED ~~[LICENSURE]~~ [A PROVISIONAL LICENSE] IF
7 THE APPLICANT:

8 [1. COMPLIES WITH SUBSECTIONS D AND E OF THIS SECTION AND SECTION
9 32-1424.01.]

10 ~~[1.]~~ [2.] HOLDS A VALID LICENSE TO PRACTICE MEDICINE THAT DOES NOT
11 REQUIRE DIRECT SUPERVISION.

12 ~~[2.]~~ [3.] HAS A FEDERAL IMMIGRATION STATUS THAT ALLOWS THE PERSON
13 TO WORK AS A PHYSICIAN IN THE UNITED STATES.

14 ~~[3.]~~ [4.] HAS AN OFFER FOR EMPLOYMENT AS A PHYSICIAN ~~[AT ANY~~
15 ~~HEALTH CARE PROVIDER THAT OPERATES]~~ IN A COUNTY WITH A POPULATION OF LESS
16 THAN ONE MILLION PERSONS.

17 ~~[4.]~~ [5.] MEETS THE REQUIREMENTS FOR LICENSURE PRESCRIBED IN
18 SECTION 32-1422, EXCEPT FOR SECTION 32-1422, SUBSECTION A, PARAGRAPHS 1
19 AND 2.

20 [D. AN APPLICANT FOR A PROVISIONAL LICENSE PURSUANT TO SUBSECTION C
21 OF THIS SECTION SHALL PROVIDE THE BOARD WITH ALL OF THE FOLLOWING:

22 1. EVIDENCE OF HAVING SUBSTANTIALLY SIMILAR MEDICAL TRAINING THAT
23 THE BOARD DEEMS TO BE OF EQUIVALENT QUALITY.

24 2. EVIDENCE OF SATISFACTORILY PASSING EXAMS AS DETERMINED BY THE
25 BOARD.

26 3. PROOF OF HOLDING CERTIFICATION FROM THE EDUCATIONAL COMMISSION
27 FOR FOREIGN MEDICAL GRADUATES.

28 4. A COMPLETE LICENSE APPLICATION.

29 5. PAYMENT OF ALL REQUIRED LICENSING FEES.

30 E. THE BOARD MAY REQUIRE AN APPLICANT FOR A PROVISIONAL LICENSE TO
31 SUBMIT EITHER OR BOTH OF THE FOLLOWING:

32 1. ANY SUPPORTING APPLICATION MATERIALS NECESSARY FOR THE BOARD TO
33 PROPERLY EVALUATE THE APPLICANT.

34 2. AT THE APPLICANT'S EXPENSE, MEDICAL EDUCATION INFORMATION
35 THROUGH THE EDUCATIONAL COMMISSION FOR FOREIGN MEDICAL GRADUATES OR
36 ANOTHER THIRD-PARTY RECORDS SERVICE.]

37 <<Sec. 2. Title 32, chapter 13, article 2, Arizona Revised
38 Statutes, is amended by adding section 32-1424.01, to read:

39 32-1424.01. Provisional licensure; fees; supervision
40 agreement; rules; employment; discipline;
41 conversion to full license; definitions

42 [A. THE BOARD BY RULE MAY ESTABLISH LICENSING AND RENEWAL FEES FOR
43 PROVISIONAL LICENSEES. A PROVISIONAL LICENSE SHALL BE RENEWED ANNUALLY.

44 B. EACH PROVISIONAL LICENSEE SHALL DO BOTH OF THE FOLLOWING:

45 1. WHILE LICENSED PURSUANT TO SECTION 32-1424, WORK WITH A
46 PHYSICIAN WHO PROVIDES INDIRECT SUPERVISION WITH DIRECT SUPERVISION
47 IMMEDIATELY AVAILABLE. WHO PRACTICES IN THE SAME SPECIALTY AS THE

1 PROVISIONAL LICENSEE AND WHO IS LICENSED PURSUANT TO CHAPTER 13 OR 17 OF
2 THIS TITLE. THE BOARD SHALL ADOPT RULES RELATING TO THIS SUPERVISION
3 REQUIREMENT, INCLUDING REQUIREMENTS FOR PROVISIONAL LICENSEES TO SUBMIT
4 THE SUPERVISION AGREEMENT TO THE BOARD, TO REPORT TO THE BOARD AND TO
5 OBTAIN MEDICAL MALPRACTICE LIABILITY INSURANCE AND REQUIREMENTS REGARDING
6 HEALTH INSURANCE COVERAGE AND PROCEDURES FOR FAILING TO ADHERE TO THE
7 TERMS OF THE SUPERVISION AGREEMENT.

8 2. COMPLY WITH THE CONTINUING EDUCATION REQUIREMENTS PRESCRIBED IN
9 THIS CHAPTER AND THE RULES ADOPTED PURSUANT TO THIS CHAPTER.

10 C. A PROVISIONAL LICENSEE'S EMPLOYER SHALL NOTIFY THE BOARD IF THE
11 PROVISIONAL LICENSEE IS TERMINATED OR LEAVES EMPLOYMENT FOR ANY REASON.
12 WITHIN FIVE DAYS AFTER RECEIVING THE NOTIFICATION FROM THE EMPLOYER, THE
13 BOARD SHALL TERMINATE THE PROVISIONAL LICENSE UNLESS THE PROVISIONAL
14 LICENSEE NOTIFIES THE BOARD THAT THE PROVISIONAL LICENSEE IS WORKING FOR
15 ANOTHER EMPLOYER IN A COUNTY WITH A POPULATION OF LESS THAN ONE MILLION
16 PERSONS AND THE NEW EMPLOYER NOTIFIES THE BOARD THAT THE PROVISIONAL
17 LICENSEE HAS ACCEPTED AN OFFER OF EMPLOYMENT. THE NEW EMPLOYER SHALL
18 COMPLY WITH BOARD RULES RELATED TO ISSUING A NEW SUPERVISION AGREEMENT.

19 D. THE EMPLOYER OF A PROVISIONAL LICENSEE MAY REQUIRE THE
20 PROVISIONAL LICENSEE TO TAKE A COMPETENCY TEST AT ANY TIME DURING
21 EMPLOYMENT.

22 E. THE BOARD MAY DISCIPLINE A PROVISIONAL LICENSEE OR REVOKE A
23 PROVISIONAL LICENSE GRANTED PURSUANT TO SECTION 32-1424 AFTER AN
24 INVESTIGATION CONDUCTED PURSUANT TO SECTION 32-1451. AN INTERNATIONAL
25 MEDICAL LICENSEE MAY APPEAL THE REVOCATION OF THE PROVISIONAL LICENSE TO
26 THE SUPERIOR COURT IN MARICOPA COUNTY PURSUANT TO TITLE 12, CHAPTER 7,
27 ARTICLE 6. THE COURT SHALL REINSTATE THE PROVISIONAL LICENSE IF THE COURT
28 FINDS THAT THE BOARD'S ACTIONS DID NOT MEET THE STANDARD PRESCRIBED IN
29 SECTION 32-1451.04.

30 F. A PROVISIONAL LICENSE IS AUTOMATICALLY CONVERTED TO A FULL
31 LICENSE TO PRACTICE MEDICINE IN THIS STATE AFTER FOUR YEARS IF ALL OF THE
32 FOLLOWING ARE MET:

33 1. THE PROVISIONAL LICENSEE ENGAGES IN THE PRACTICE OF MEDICINE IN
34 THIS STATE FOR FOUR YEARS IN A COUNTY WITH A POPULATION OF LESS THAN ONE
35 MILLION PERSONS.

36 2. THE PROVISIONAL LICENSEE IS NOT DISCIPLINED BY THE BOARD DURING
37 THE FOUR-YEAR PERIOD OF PROVISIONAL LICENSURE.

38 3. THE SUPERVISING PHYSICIAN WITH WHOM THE PROVISIONAL LICENSEE HAS
39 A SUPERVISION AGREEMENT SUBMITS A SIGNED ATTESTATION TO THE BOARD
40 CERTIFYING THAT IT IS THE SUPERVISING PHYSICIAN'S PROFESSIONAL OPINION
41 THAT THE PROVISIONAL LICENSEE MEETS THIS STATE'S STANDARDS FOR PROVIDING
42 MEDICAL CARE. THE BOARD SHALL ADOPT RULES RELATED TO THE FORMAT AND
43 SUBMISSION REQUIREMENTS FOR THIS ATTESTATION DOCUMENT.

44 G. FOR THE PURPOSES OF THIS SECTION:

45 1. "INDIRECT SUPERVISION WITH DIRECT SUPERVISION IMMEDIATELY
46 AVAILABLE" MEANS THE SUPERVISING PHYSICIAN IS PHYSICALLY PRESENT WITHIN
47 THE HOSPITAL OR OTHER ELIGIBLE ENTITY SITE OF PATIENT CARE AND IS

1 IMMEDIATELY AVAILABLE TO PROVIDE DIRECT SUPERVISION OF THE PROVISIONAL
2 LICENSEE.

3 2. "PROVISIONAL LICENSEE" MEANS AN APPLICANT WHO HAS BEEN GRANTED A
4 PROVISIONAL LICENSE PURSUANT TO SECTION 32-1424, SUBSECTION C.]

5 <<Sec. 3. Section 32-1425, Arizona Revised Statutes, is amended to
6 read:

7 32-1425. Initial licensure

8 A. An applicant who meets the applicable requirements provided in
9 section 32-1422, 32-1423 or 32-1424, has passed steps one and two of the
10 United States medical licensing examination or one of the examination
11 combinations prescribed in section 32-1426, subsection A, paragraph 6,
12 subdivision (c), items (i) and (ii), has paid the fees required by this
13 chapter and has filed a completed application found by the board to be
14 true and correct is eligible for licensure as a doctor of medicine ~~[upon]~~
15 [ON] successful passage of step three of the United States medical
16 licensing examination with a scaled score of at least seventy-five if the
17 applicant has passed all three steps within a ~~[seven-year]~~ [SEVEN-YEAR]
18 period.

19 B. An applicant for licensure applying pursuant to section 32-1422,
20 32-1423 or 32-1424 may take the examination only after successfully
21 completing six months of a ~~[board-approved]~~ [BOARD-APPROVED] hospital
22 internship, residency or clinical fellowship or fifth pathway program [OR
23 A PATHWAY PRESCRIBED IN SECTION 32-1424, SUBSECTION C] or serving as a
24 full-time assistant professor or in a higher position in a ~~[board~~
25 approved] [BOARD-APPROVED] school of medicine in this state.

26 C. The board shall not grant a license until the applicant meets
27 the requirements for licensure pursuant to this chapter.>>

28 Enroll and engross to conform

29 Amend title to conform

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